

## DISSENTING OPINION BY M. HUBER.

[*Translation.*]

The undersigned regrets that he is unable to concur in the Judgment rendered by the Court. Relying exclusively upon the material to be found in the records of the proceedings before the Court—the only material which is legally relevant—he considers that it is not within the jurisdiction of the Court to pass upon the submissions in the German Application in the circumstances in which this is recognized as possible in the Judgment. The Court must confine itself to adjudicating upon those submissions solely on the basis of Division I of Part III of the Geneva Convention, and that for the following reasons:

In accordance with the terms of Article 36 of the Statute, “the jurisdiction of the Court comprises all cases which the Parties refer to it and all matters specially provided for in treaties and conventions in force”.

Although this delimitation of jurisdiction is wide, it is simultaneously limitative in character. In contradistinction to municipal tribunals, the Court has no jurisdiction independent of the will of the Parties and existing prior to such will. According to Article 40 of the Statute, cases are submitted to the Court either by notification of a special agreement or by written application.

The German Application of January 2nd, 1928, invokes Article 72, paragraph 3, of the Geneva Convention—i.e. a jurisdiction derived from a convention in force, and Article 40 of the Statute. By these two clauses the Court's jurisdiction and the procedure to be followed are defined. The rules of substantive law upon which the submissions of the Application are based are those contained in Articles 65, 68, 72, paragraph 2, 74, 106 and 131, as well as in the Preamble to Section II of the Geneva Convention.

Poland has not put forward a preliminary objection under the terms of Article 38 of the Rules of Court; she has admitted the jurisdiction of the Court, as accepted by her under Article 72, paragraph 3, of the Geneva Convention; but

in adopting this point of view she has simply admitted this jurisdiction in accordance with the interpretation which the Court might put upon it. Indeed, the German Application is not of such a character as to exclude *prima facie* the possibility for the Court to pass judgment by virtue of Article 72, paragraph 3.

It is true that the submissions in the Application and the Case of the German Government, on the one hand, and the Counter-Case of the Polish Government, on the other, have revealed the fact that the two Parties place differing constructions upon Article 72, paragraph 3. Whereas Germany considers that the jurisdiction of the Court extends both to Division II and to Division I of Part III, Poland, in its Counter-Case, maintains that this jurisdiction only refers to the articles preceding Article 72 and that consequently the submissions relating to the provisions of Division II should be considered with reference to Division I. The submissions in the Counter-Case may, from this point of view, be easily understood: they consist in asking either for the dismissal of the Applicant's submissions as going beyond the limits of the jurisdiction recognized—and this interpretation of the main Polish submission, although contrary to the ordinary meaning of the word *débouter*, appears to be the only one compatible with the context—or, in the alternative, that these submissions should be passed upon with reference to Article 69. After the German Reply had demonstrated the essential opposition between the two interpretations of Article 72, paragraph 3, Poland submitted in its Rejoinder a plea to the jurisdiction. Although presented too late if considered as a plea aiming at the arrest of the proceedings on the basis of Article 72, paragraph 3, and although too general in scope, since at least part of the German submission is based on Division I, the Polish plea retains all its force as showing that Poland has only recognized the jurisdiction of the Court within the limits of Article 72, paragraph 3. A consideration of the question as to what rules of substantive law should be applied by the Court in exercising the jurisdiction conferred upon it by virtue of Article 72, paragraph 3, certainly comes within the limits of that jurisdiction, and such a consideration may

certainly be entered upon at any stage of the proceedings. The disputes as to the jurisdiction provided for under the last paragraph of Article 36 of the Statute are not necessarily, except in particular circumstances, preliminary pleas.

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The jurisdiction conferred by Article 72, paragraph 3, of the Geneva Convention only extends to Division I of Part III. In support of this point of view, the following arguments should be added to those set out in the Judgment:

1.—It is a characteristic feature of the whole system of the Geneva Convention to provide different forms of jurisdiction and remedy almost for each Part or Division, or even for Sub-Divisions of Divisions. Consequently the extension of the jurisdiction relating to one section of the Convention, to another part of the same document, is not admissible, and still less so in view of the fact that Division III (Articles 147 *et seq.*) lays down an elaborate and special system of individual and collective remedies as concerns the whole of Part III.

2.—Article 72, paragraph 3, is the literal reproduction of Article 12 of the Minorities Treaty of June 28th, 1919, and of analogous provisions of other treaties. The jurisdiction conferred by this clause is in every respect very particular in character and goes beyond the province of general international law; for Article 72, paragraph 3, confers on every Power being a Member of the Council, even if it is not a contracting Party to the Minority Treaties or to the Geneva Convention, the right of appealing to the Court, and such judicial action is based upon stipulations which relate not to rights of the applicant State or to those of its nationals on whose behalf it might take action, but to the relations between the respondent State and its own nationals. In view of the very special character of the jurisdiction resulting from Article 72, paragraph 3, it seems difficult to deduce, from the mere fact of this article having been inserted in the Geneva Convention, an extension of that jurisdiction beyond Division I. The system established by Division I is, in so far as it constitutes a "minority treaty", according to the decision of the Confer-

ence of Ambassadors, applicable *de plano* to Polish Upper Silesia, and it is by virtue of the same decision that this system has, on a basis of reciprocity, been made applicable also to the German part. But Division II has a different character: it constitutes an agreement between the two States, taking into account the special conditions in Upper Silesia, and, according to Clause III of the final Protocol, may be modified by mutual consent in the same way as the other provisions of the transition régime. But it would appear to be inconceivable that the contracting Parties should have conferred otherwise than by an express stipulation upon third Powers, not being Parties to the Geneva Convention, the right of taking judicial action against them in regard to the interpretation and application of their agreement. Nor does Division II, in spite of its Preamble, reproduce in any way Article 72. This article consequently is not to be found within the body of rules which Division II purports to repeat.

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It follows from what has been said above that Article 72, paragraph 3, only relates to Division I and that from the point of view of procedure the Respondent has not abandoned this line of argument; on the contrary, he has maintained his contention that jurisdiction is restricted to Division I. But it is nevertheless possible that the Parties may have extended the basis of the Court's jurisdiction by an agreement arrived at between them.

As it would not be a question of bringing a new suit, but of conferring on the Court new jurisdiction for a suit already submitted to it, the conditions of form laid down in Article 40 of the Statute need not be fulfilled. On the other hand, Article 36, paragraph 1, of the Statute is binding on the Court, and consequently also on the Parties, whenever jurisdiction is conferred upon the Court.

It is common ground that a jurisdiction wider than that resulting from Article 72, paragraph 3, would not be derived from a treaty in force, but from an agreement *ad hoc*. The question therefore is, whether the case, in so far as it goes beyond the limit of Article 72, paragraph 3, has been referred

to the Court by the Parties; in other words, have Germany and Poland submitted to the Court the question of the interpretation of Articles 74, 106 and 131 of the Geneva Convention?

Reference of a case to the Court by the Parties means, under Article 36, reference by virtue of an agreement—a bilateral instrument—concluded between them in regard to a particular case; the typical case, but not necessarily the only one of this kind, is a “compromis” properly so-called. For a State to be able to bring a suit by unilateral application, a previous agreement must exist conferring this right upon it. But it is not to be presumed that Article 36 recognizes, apart from these two possible ways of bringing a suit before the Court, a third way according to which jurisdiction would result from the fact that a State has submitted, by unilateral application, a claim which is, in part, at all events, outside the scope of any pre-existing jurisdiction, and that the Respondent has replied by argument upon the merits. Such an interpretation of Article 36 appears difficult to reconcile with the conceptions which, at the time of the preparation of the Statute, were current in Government circles in regard to compulsory arbitration, and it is itself contradicted by the records of the preparatory work.

Germany has submitted her Application on the assumption that the Court's jurisdiction, under Article 72, paragraph 3, extends to the provisions of Division II in the same way as to those of Division I. According to what has been said above, this view is not legally sound. By proceeding thus, Germany has neither been able nor even sought to modify the jurisdiction established by Article 72, paragraph 3. The consent of the Parties could only be deduced from the attitude adopted by Poland in her Counter-Case, for from the Rejoinder onwards and throughout the oral proceedings, her dissent is obvious. The only thing which might constitute consent to an agreement—a consent which Poland could not go back upon—is the fact that the Polish Counter-Case discusses the interpretation of Articles 74, 106 and 131, not exclusively in relation to Division I, and that it formulates submissions in respect of the merits of the German Government's submissions. Nevertheless, the divergence between the standpoint of the two Parties as regards the relation between Divisions I

and II, in so far as the question of jurisdiction is concerned, is already clear in the first phase of the written proceedings, and nothing is to be found in that phase to justify the assumption that the Parties intended to go beyond the scope of Article 72, paragraph 3, and submit the case to the Court on a new jurisdictional basis.

In these circumstances, it seems impossible to say that there has been a consent on the part of the Parties to the establishment of a new basis of jurisdiction or to the adoption of a common interpretation of Article 72, paragraph 3, and the whole trend of the proceedings which have taken place before the Court is against the presumption of such consent. It is true that the attitude of the representatives of the two Parties before the Council seems to indicate that they both expected to obtain from the Court an interpretation of the articles cited with this object in the German submissions. But this fact is not relevant at law.

As the jurisdiction of international tribunals is almost always derived from treaties or other instruments expressly declaring the intention of the State, it is difficult to conceive that new jurisdictional powers—even in regard to a particular case only—could be indirectly inferred from the line of conduct of agents. It would be especially difficult to make such an inference in regard to the intention of the Parties in the first suit brought on the basis of the jurisdiction conferred on the Court under the treaties of minorities of 1919.

Even, however, if the Parties had both similarly based the discussion on Division II, it would seem that an express acceptance, notified to the Court by the persons entitled to make declarations in the name of the Parties, would be required to authorize the Court to go beyond the limits of the jurisdiction derived from the treaty under which the case has been brought before it.

The absence of a plea to the jurisdiction does not create jurisdiction; it merely enables the case to be proceeded with. When a case has been referred to the Court under a clause conferring compulsory jurisdiction and no objection to the jurisdiction is raised, the Court is not called upon, except under Article 53 of the Statute, *ex officio* to consider whether it has jurisdiction; it will assume that it has jurisdiction in

the absence of an objection. But, when giving judgment in virtue of jurisdiction implicitly or explicitly recognized by the Parties, it must *ex officio* ascertain on what legal foundation it is to base its judgment upon the claims of the Parties. *Jura novit curia*. The Court's jurisdiction is determined by the treaty or special agreement establishing that jurisdiction, and not by the contentions maintained by the Parties in the particular case.

Accordingly, it is Article 72, paragraph 3, of the Geneva Convention alone which determines the scope of the Court's jurisdiction in the present suit.

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Since the Court should base its judgment on Division I, it should only deal incidentally with the provisions of Division II. Interpretations and applications of the provisions of Division II are merely points of fact which may be considered in relation to their conformity with those of Division I. In this respect Article 68, which establishes the principle of equality of treatment, is especially important.

Adopting the point of view taken by the Court in construing the German submissions, the following results are arrived at on the basis of Division I: (1) The submissions in regard to the interpretation of Articles 74, 106 and 131 as such fall outside the scope of the Court's jurisdiction. (2) In so far as the submissions relating to these articles concern the conformity of certain interpretations with the provisions of Division I, more especially the conformity of the so-called objective and subjective principles with Articles 68 and 69, a *non liquet* is indicated. Articles 68 and 69 contain nothing forbidding a State to verify whether, according to objective criteria, a person belongs to a minority or what is a child's own language. But these articles which, like the whole of Division I, are intended to secure to minorities certain rights and a certain specially favourable treatment, do not prevent States, either by independent legislation or by convention, from granting minorities more extensive rights or a more liberal treatment. For this reason, the contentions of the

two Parties in regard to the interpretation of Articles 74, 106 and 131 are neither supported by nor in opposition to the provisions of Division I. (3) The conclusion arrived at by the Court in regard to discriminatory measures in general would not be modified because it is already based on Division I.

(Signed) MAX HUBER.

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